

22/7

FR NO. 12506/2020 (WP)  
IN THE HIGH COURT OF KARNATAKA AT BANGALORE  
PRESENTATION FORM

W.P.No. 9697/2020

Serial No. \_\_\_\_\_

\_\_\_\_\_ District

|                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p>S.Kalyan basavaraj &amp;<br/>Dr.Prajwal K Aradhya,<br/>Advocates,<br/>Office: No-208,2<sup>nd</sup> Floor,<br/>Blue Cross Chambers,<br/>No.11, Infantry Road Cross,<br/>Bangluru-560 001.<br/><a href="mailto:kalyanbasavaraj@gmail.com">kalyanbasavaraj@gmail.com</a><br/><a href="mailto:drprajwalkaradhya@gmail.com">drprajwalkaradhya@gmail.com</a><br/>Mob:9448085443,9632516869</p> | <p style="text-align: center;">BETWEEN</p> <p>Sri. H.H.Mallikarjunappa ..... Petitioner</p> <p style="text-align: center;">AND</p> <p>The State of Karnataka<br/>and Others ..... Respondents</p> |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

| Sl. No. | Description of Paper presented         | Court Fee affixed on the paper |
|---------|----------------------------------------|--------------------------------|
| 1.      | On the Memo of _____<br>Petition ..... |                                |
| 2.      | On the Memo of Appeal .....            |                                |
| 3.      | On Vakalath                            |                                |
| 4.      | On Certified copies .....              |                                |
| 5.      | On I.A. No. _____ for .....            |                                |
| 6.      | On Process Fee .....                   |                                |
| 7.      | On Copy Application .....              |                                |
| 8.      | _____                                  |                                |
| 9.      | _____                                  |                                |
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Appellant / Respondent

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IN THE HIGH COURT OF KARNATAKA, AT BANGALORE.

W.P. No...../2020

BETWEEN:

Sri. M.V. Shankarappa

: Petitioner

AND:

The Town Municipality

: Respondent

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BANGALORE.

DATE:

ADVOCATE FOR PETITIONER

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IN THE HIGH COURT OF KARNATAKA, AT BANGALORE.

W.P. No...../2020

BETWEEN:

Sri. H.H. Mallikarjunappa : Petitioner

AND:

The State of Karnataka and others : Respondents

SYNOPSIS

| Date       | Event                                                                                                                                                                                                                                                                                                                                                                                                                  |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ---        | The petitioner's land was sought to be acquired by the KIADB under Section 28(2) of the Land Acquisition Act, 1894 and thereafter, the final notification came to be issued.                                                                                                                                                                                                                                           |
| 11.11.2010 | On coming to know the same, the Petitioner approached the Deputy Commissioner and resisted the acquisition proceedings on the premise that the said property is required for himself for establishing an industry, in the context of which the Petitioner has filed objections to the entire acquisition proceedings dated 11.11.2010, which was received in the office of the Land Acquisition Officer on 29.11.2010. |
| 07.04.2011 | The Land Acquisition Officer appears to have taken the signature on the papers, which does not disclose as to what exactly the amount arrived at between the Petitioner and the acquisition authorities in the matter of deciding the compensation as contemplated under Section 29(2) of the KIADB Act and proceeded in the matter.                                                                                   |
| 14.07.2015 | Petitioner filed W.P.No.33900/2014 and thereafter withdrew the same, which was filed seeking a writ of mandamus to                                                                                                                                                                                                                                                                                                     |

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|            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            | refer the matter to the Senior Civil Judge for adjudication of the market value on the premise that the Petitioner has not consented for compensation as contemplated under Section 29(2) of the Act since there was no offer and acceptance. Since the Petitioner has not exhausted the remedy under Section 18(3)(b) of the Land Acquisition act, this Hon'ble Court was of the opinion that the same remedy has to be exhausted before invoking the jurisdiction of this Hon'ble Court and when the matter came up for consideration, the Petitioner withdrew W.P.No.33900/2014. |
| 12.07.2019 | Trial Court rejected the application seeking reference under Section 18(3)(b) of the Land Acquisition Act seeking reference for enhancement of compensation.                                                                                                                                                                                                                                                                                                                                                                                                                        |

#### BRIEF FACTS

Petitioner's land was sought to be acquired by the KIADB under Section 28(2) of the Land Acquisition Act, 1894 and thereafter, the final notification came to be issued. In this regard, the Petitioner approached the Deputy Commissioner and resisted the acquisition proceedings on the premise that the said property is required for himself for establishing an industry, in the context of which the Petitioner has filed objections to the entire acquisition proceedings dated 11.11.2010, which was received in the office of the Land Acquisition Officer on 29.11.2010. The Land Acquisition Officer appears to have taken the signature on the papers, which does not disclose as to what exactly the amount arrived at between the Petitioner and the acquisition authorities in the matter of deciding the compensation as contemplated under Section 29(2) of the KIADB Act and proceeded in the matter. Petitioner filed W.P.No.33900/2014 and thereafter withdrew the same, which

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was filed seeking a writ of mandamus to refer the matter to the Senior Civil Judge for adjudication of the market value on the premise that the Petitioner has not consented for compensation as contemplated under Section 29(2) of the Act since there was no offer and acceptance. Since the Petitioner has not exhausted the remedy under Section 18(3)(b) of the Land Acquisition act, this Hon'ble Court was of the opinion that the same remedy has to be exhausted before invoking the jurisdiction of this Hon'ble Court and when the matter came up for consideration, thereby the Petitioner withdrew W.P.No.33900/2014. Trial Court rejected the application seeking reference under Section 18(3)(b) of the Land Acquisition Act seeking reference for enhancement of compensation. Hence, this writ petition.

Bengaluru,

Date:

Advocate for Petitioner

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE.

(Original Jurisdiction)

W.P. No. .... 9697 ...../2020 (LA-RES)

BETWEEN:

SRI. H.H. MALLIKARJUNAPPA,  
S/o late H.P. Halappa,  
Aged about 69 years,  
R/at No.55, "Surya Chandra",  
Opp. To ZP Office Quarters,  
Channappa Layout,  
Shivamogga - 577 201.

...PETITIONER

AND:

1. The State of Karnataka,  
By its Principal Secretary,  
Department of Revenue,  
M.S. Building,  
Bengaluru-560 001.
2. The Deputy Commissioner,  
Shimoga District,  
Shimoga-577 201.
3. The Special Land Acquisition Officer,  
KIADB, Baikampady,  
Mangaluru-575 001.

...RESPONDENTS

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226 AND 227  
OF THE CONSTITUTION OF INDIA**

The Petitioner above named begs to state as follows:-

1. The address of the Petitioner for the purpose of service of summons, notices etc., is as stated above in the cause title. The Petitioner can also be served through his counsels, Sri. S. Kalyan Basavaraj & Dr. Prajwal K.

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Aradhya, Advocates, C-208, 2<sup>nd</sup> Floor, Blue Cross Chambers, No.11,  
Infantry Road Cross, Bangalore -560001.

2. The address of the Respondent is as stated above in the cause title.
3. The Petitioner herein calls in question the order dated 12.07.2019 passed in L.A.Mis.No.66/2015 on the file of the Prl. Senior Civil Judge and CJM at Shivamogga rejecting the application made by the Petitioner under Section 18(3)(b) of the Land Acquisition Act by directing the Respondents to make reference for enhancement of compensation. A copy of the Order dated 12.07.2019 is herewith produced and marked as ANNEXURE - A.

**FACTS OF THE CASE**

4. That the Petitioner is the absolute owner of land bearing Sy.No.102 measuring 3.25 acres of Siddlipura village, Kasaba Hobli, Shivamogga Taluk, Shivamogga District and al the revenue records. The revenue records stands in his name, copy of which is produced herewith and marked as ANNEXURE-B. The said property measures 3 acres 25 guntas, out of which 9 guntas is kharab, which is included to the land in question. The land was sought to be acquired by the KIADB under Section 28(2) of the Act and thereafter, the final notification came to be issued. In the first place, the notice under Section 28(1) was not served upon the petitioner. After issuance of the final notification under Section 28(2) of the Act, on coming to know the same, the Petitioner approached the Deputy Commissioner and resisted the acquisition proceedings on the premise that the said property is required for himself for establishing an industry, in the context of which the Petitioner has filed objections to the entire acquisition proceedings dated 11.11.2010, which was received in the office of the Land Acquisition Officer on 29.11.2010, copy of which is produced herewith and marked as ANNEXURE-C.

5. It is submitted that one Mr. Mahesh made a counter claim in respect of the land which was acquired. The matter was referred to the Civil Court under Section 30 & 31 of the Land Acquisition Act. Upon enquiry, the Civil Court held that it is the Petitioner is entitled to compensation, who is the true owner of the property in question. A copy of the order passed by the Civil Court under Section 30 & 31 of the Land Acquisition Act is produced herewith and marked as ANNEXURE -D.
6. The Petitioner submits that since he has opposed the entire acquisition proceedings way back in the year 2012 itself by filing objections to the Land Acquisition Officer and Deputy Commissioner, there is no question as to whether the Petitioner has consented for acquisition and was amenable to negotiations for the purpose of payment of compensation under Section 29(2) of the KIADB Act. The Petitioner submits that the Land Acquisition Officer appears to have taken the signature on the papers, which does not disclose as to what exactly the amount arrived at between the Petitioner and the acquisition authorities in the matter of deciding the compensation as contemplated under Section 29(2) of the KIADB Act and proceeded in the matter. A copy of the Agreement dated 07.12.2011 is produced herewith and marked as ANNEXURE-E. It is clear from the said Agreement that there is no consent as required in law. There is no mentioning of the price. Further, the Special Land Acquisition Officer has not signed the Agreement and the same does not contemplate the terms of contract and also there was no offer and acceptance in the matter of reaching conclusion as to the quantum of compensation. In the circumstances, the said document is nonest in the eye of laws and cannot be considered.

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7. The Petitioner submits that several persons who were not interested in the property in question was set up as claimants and one such person by name Mr. Mahesh. In the circumstances, the acquisition authorities have created a situation so as to drag the Petitioner to sign several documents, otherwise they would pay compensation to such claimants, who are set up by them. It was in these circumstances, the said document came to be executed.

8. The Petitioner submits that on an earlier occasion, he filed a writ petition on the file of this Hon'ble Court seeking a writ of mandamus to refer the matter to the Senior Civil Judge for adjudication of the market value on the premise that the Petitioner that the Petitioner has not consented for compensation as contemplated under Section 29(2) of the Act since there was no offer and acceptance. Since the Petitioner has not exhausted the remedy under Section 18(3)(b) of the Land Acquisition act, this Hon'ble Court was of the opinion that the same remedy has to be exhausted before invoking the jurisdiction of this Hon'ble Court and when the matter came up for consideration, the Petitioner withdrew W.P.No.33900/2014. A copy of the order dated 14.07.2015 withdrawing the writ petition is produced herewith and marked as ANNEXURE-F. Thereafter, the Petitioner filed a Petition under Section 18(3)(b) of the Land Acquisition Act seeking reference for enhancement of compensation. The said Petition was contested in KA(MNG)66/2015 vide Order dated 12.07.2019, the Trial Court has rejected the application seeking reference under Section 18(3)(b) of the Land Acquisition Act.

9. Being aggrieved by the said order of dismissal, the petitioner has no other alternative or efficacious remedy except to invoke the jurisdiction

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of this Hon'ble Court under Article 226 and 227 of the Constitution of India on the following amongst other grounds.

10. The Petitioners have not filed any other petition or any matter pending before any other court of law on the same cause of action against the same Respondents.

GROUNDS

11. The impugned order dated 12.07.2015 is opposed to law, facts and circumstances of the case and the same is liable to be quashed.
12. The learned Civil Judge failed to apply his mind with regard to the facts which led into seeking reference under Section 18(3)(b) of the Land Acquisition Act in a case where the very consent arrived at between the parties under Section 29(2) of the KIAD Act in the matter of concluding the compensation itself was in dispute and in the circumstances, it was incumbent upon the Special Land Acquisition Officer to make reference for enhancement of compensation
13. The Trial Court has failed to record any finding with regard to the execution of the contract in a case where specific contention was taken regarding signature taken on the blank papers and the quantum of compensation was not reduced to writing and the Land Acquisition Officer has not signed the Agreement. In the circumstances, the Trial Court ought to have discarded the said document which was allegedly treated as the one Agreement as required under Section 29(2) of the KIADB Act.

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14. The Trial Court failed to take note of the fact that way back in the year 2010 itself, the Petitioner has opposed the very acquisition process and requested to drop since the land is required to set up an industry by himself. Such being the case, there is no reason as to why the Petitioner can give consent for compensation under Section 29(2) of the KIADB Act.

15. It is pertinent to note that though the KIADB Act provides for payment of compensation under Section 29(2) of the KIADB Act, however, the same has to be determined by an Agreement and the Agreement has to be proved, but the same is called in question and disputed.

16. It is submitted that from the very reading of the order impugned, there was no finding as regards the disputed document. Since all the documents pursuant to the alleged Agreement entered into between the parties have been got executed without there being any dialogue or discussion in the matter of arriving at in the matter of compensation.

17. Viewed from any site or angle, the impugned order suffers from serious legal infirmities and the same is liable to be quashed.

PRAYER

Wherefore, it is prayed that this Hon'ble Court may be pleased to:

- (a) issue a Writ of Certiorari or any other order or writ quashing the impugned order dated 12.07.2020 passed by the Prl. Senior Civil Judge and CJM at Shivamogga in L.A.Mis.No.66/2015, produced as Annexure-A;

IN THE HIGH COURT OF KARNATAKA, AT BANGALORE.

W.P. No...../2020

BETWEEN:

Sri. H.H. Mallikrajunappa

: PETITIONER

AND:

The Deputy Commissioner,  
Shivamogga District and another

: RESPONDENTS

VERIFYING AFFIDAVIT

I, H.H. Mallikrajunappa, S/o late H.P. Halappa, aged about 68 years, residing at No.55, "Surya Chandra", Opp. To ZP Office Quarters, Channappa Layout, Shivamogga-577 201, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:

4. I am the Petitioner herein and I am well conversant with the facts of the case. Hence, I am swearing to this affidavit.
5. I submit that the averments made in paras 1 to 17 of the accompanying Writ Petition and the documents referred thereto are true and correct to the best of my knowledge, information and belief.

6. Annexures "B" to F are copies of the originals. and Annexure "A" is the certified copy of the original.

Identified by me :

Advocate

  
DEPONENT

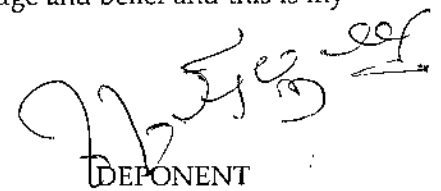
Verification

I, the deponent above named, do hereby verify and state that what is stated above is true and correct to the best of my knowledge and belief and this is my name and signature.

Bengaluru,

Date :

No. of corrections:-

  
DEPONENT

Sworn to before me

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NVR

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12 - ANNEXURE - "A" 22

1

L.A.Mis.No.66/2015.

IN THE COURT OF THE PRL.SENIOR CIVIL JUDGE AND CJM  
AT SHIVAMOGGA

Dated this the 12<sup>th</sup> day of July, 2019.

Present: Lakshminarayana Bhat K., B.A., LL.B.,  
Prl. Senior Civil Judge and CJM,  
Shivamogga.

L.A.Mis.No. 66 / 2015.

Petitioner/s :

H.H.Mallikarjunappa s/o late H.P.Halappa, 63 years,  
R/o No.55, 'Surya Chandra', Opposite to ZP Office  
Quarters, Channappa Layout, Shivamogga - 577 201.

(By Sri N.Venkatarama, Advocate)

Vs.

Respondent/s:

- |    |                                                                                                                    |
|----|--------------------------------------------------------------------------------------------------------------------|
| 1. | The Deputy Commissioner, Shivamogga District,<br>Shivamogga - 577 201,                                             |
| 2. | The Special Land Acquisition Officer, Karnataka<br>Industrial Area Development Authority,<br>Bhannappa, Mangalore. |

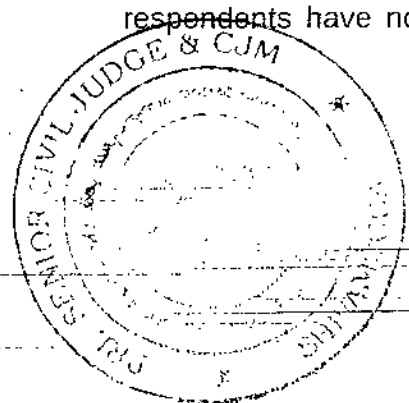
(R-1: By District Government Pleader)

(R-2: By Sri K.G.Chandrappa, Advocate)

::: ORDER :::

The petition is filed under Section 18(3) (b) of Land  
Acquisition Act 1894 for an order to direct the respondent to make  
reference for enhancement of compensation.

2. As per the averments made in the petition, petitioner is the  
owner of the property comprised in Sy.No.102 measuring 3.25  
acres of Siddlipura Village. In the acquisition proceedings the  
respondents have not served the notice when the property was



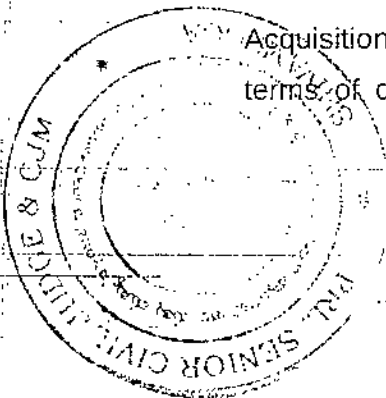
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acquired under Section 28(1) of Karnataka Industrial Areas Development Act and the petitioner was not residing at Siddlipura. Respondent No.2 has passed an order, acquired the land measuring 3.16 guntas and the petitioner came to know respondent No.1 is assessing the market value for compensation and the petitioner appeared before respondent No.1 and filed his objection for the acquisition. The petitioner was growing two crops in the said property. In record of rights, name of Mahesh was entered even though the petitioner was the owner of the property. The Land Acquisition Officer has issued letter dated: 06.01.2012 to make payment of compensation and he has passed an order on 21/24.01.2012 to refer the matter under Section 30 and 31 of the Act to the court. The petitioner has stated, he has filed W.P.7087/2012 before Hon'ble High Court of Karnataka and it is admitted the said petition came to be dismissed. This court passed an order in L.A.C.1/2012 dated: 28.03.2014 holding petitioner is entitled for compensation and not Mahesh.

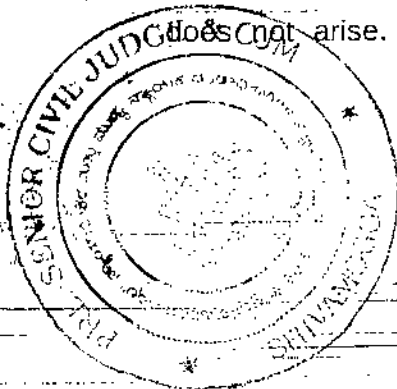
3. The petitioner has alleged, Special Land Acquisition Officer has taken his signature in a typed copy and it did not disclose the amount to be paid except Sy.No.102. The petitioner also admitted, the Special Land Acquisition Officer extracted indemnity bond on 13.12.2011 and there is no consent agreement as per law and the document is having no legal validity. The Land Acquisition Officer has obtained signature without disclosing the terms of compromise and Special Land Acquisition Officer has



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also not signed the agreement and hence it is not a valid agreement. The indemnity bond was obtained without disclosing the market value of the property. Respondent No.2 has taken the agreement on 13.12.2011 and in fact it is not a consent award, in the absence of mentioning the amount of compensation. The award notice was also not served on the petitioner and the market value of the acquired land at the time of acquisition was not less than Rs.80 to 85 lakhs per acre and Rs.2,000/- to Rs.2,500/- per sq. ft. The petitioner came to know on 20.09.2013, he had received Rs.47.60 lakhs compensation for the acquisition of 3.16 acres instead of 3.25 acres including 9 guntas of kharab land. The application filed by the claimant is in time and hence sought for reference under Section 18 of the Act.

4. Respondent No.1 entered appearance through District Government Pleader and respondent No.2 has entered appearance through their advocate and filed objection contending, petition is not maintainable in law. They have admitted, made reference under Section 30 and 31 of the Act in LAC 1/2012 and awarded compensation of Rs.47.60 lakhs and it was disbursed as per order dated: 28.03.2014. It is submitted, in the present proceeding consent award was passed by the Deputy Commissioner and Land Acquisition Officer on 11.12.2011 and the petitioner has not raised objection and accepted the compensation. Hence reference of the compensation awarded does not arise. It is further pleaded, petitioner has already

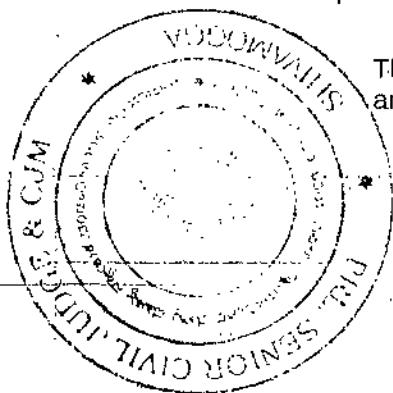


received compensation. Respondent No.2 admitted acquisition of land in Sy.No.102 of Siddipura Village measuring 3.16 acres and notification issued on 01.02.2009 and notice was issued on 23.08.2010. For fixation of the land value, Deputy Commissioner and Special Land Acquisition Officer, K.I.A.D.B. held a meeting with land owners on 11.02.2011 and after obtaining their consent and considering the Sub-Registrar value, registration of the value relating to property of Siddipura Village, <sup>assessed</sup> compensation of Rs.14,00,000/- per acre for dry land and Rs.15,00,000/- per acre for wet and garden land. It is stated, since there was a dispute between the land owners, the matter was referred under Section 30 and 31 of the Act and deposited the compensation of Rs.47.60 in LAC 1/2012. The claimant has received the said amount. For the aforesaid reasons they have prayed for dismissal of the petition.

5. In order to prove the petition averments, petitioner was examined as P.W.1 and produced documents marked at Ex.P.1 to P.49. On behalf of respondent No.2, the Revenue Inspector was examined as R.W.1 and he has produced Ex.D.1 to D.3 documents.

6. Heard arguments. Learned advocate appearing for the respondent has relied upon the following reported judgment:

2013(5) KCCR 4393 (Smt. Mariyamma vs. The Special Land Acquisition Officer, KIADB, Mysore and others).



*[Signature]*  
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7. After analyzing the petition averments, objection statement filed by respondent No.2, oral and documentary evidence placed on record, and after hearing the arguments, at this stage, the points that arise for my determination are:

(1) Whether the petitioner has made out compensation awarded by the respondent is not just and proper and it is a fit case for reference under Section 28(3) of the Act?

(2) What order?

My findings on the aforesaid points are:

(1) In the negative,

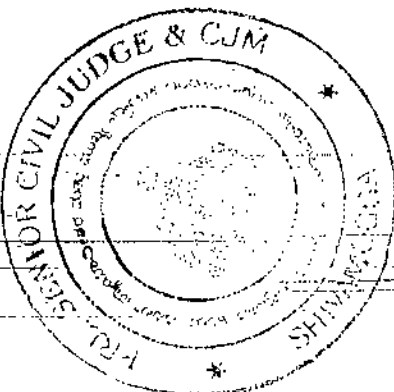
(2) As per the final order,

for the following

#### REASONS

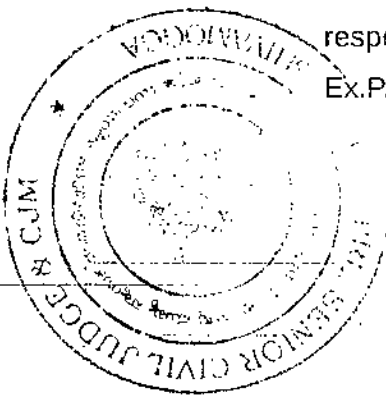
8. Point No.1:

It is not in dispute the petitioner is the owner of property comprised in Sy.No.102 of Siddlipura Village, totally measuring 3.25 acres and respondent No.2 has acquired the property and awarded compensation of Rs.47.60 lakhs. The petitioner has further admitted, in LAC 1/2012 he has received the entire compensation amount and the petition was referred under Section 30 and 31 of Land Acquisition Act. As per the records in L.A.C.1/2012 available on record, on 18.06.2014 the claimant has received cheque for Rs.52,03,586/-. R.W.1 in his evidence has deposed, in the acquired land there was 9 guntas kharab and hence the petitioner is not entitled for compensation and therefore



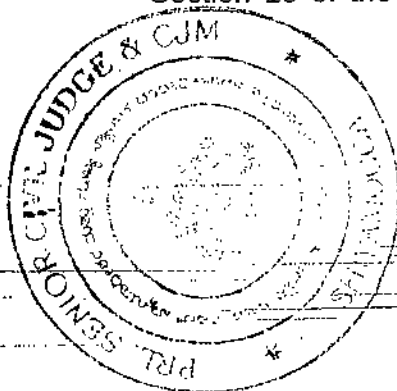
the acquired land is considered as 3.16 acres.

9. Among the documents placed on record, Ex.D.2 is the notification dated: 23.08.2010 for acquisition of land of the claimant alongwith in all 123 owners. Name of the claimant is appearing in Sl.No.60 and extent of the property is shown as 3.16 acres. The claimant has not produced any copy of the award passed under Section 11 of Land Acquisition Act. P.W.1 in his affidavit filed in lieu of examination-in-chief deposed as per the averments made in the petition. The petitioner has admitted, respondent – Land Acquisition Officer has obtained his signature and also he has executed indemnity bond in their favour. Ex.P.4 is the indemnity bond dated: 13.12.2011 and it is true, in page No.2 of the agreement, the amount of compensation is kept blank. The petitioner has not disputed his signature in the original agreement executed in favour of the respondents. Ex.P.44 is the copy of the order passed in W.P.7087/2012 and the claimant is the petitioner in the said case. In the said order also there is a finding that compensation determined by consent and compromise. The petitioner has filed the writ petition against the respondent and Mahesh challenging the reference made by respondent under Section 30 and 31 of the Act. Whether the claim of objector Mahesh is fake or not is <sup>to be</sup> decided in LAC 1/2012 and Hon'ble High Court of Karnataka refused to interfere with the order of respondent making reference under Section 30 and 31 of the Act. Ex.P.4 and P.38 is one and the same document.



*Handwritten signature and date 12-7*

10. Respondent No.2 has produced Ex.D.3 - copy of the proceedings dated: 11.02.2011 and passed an order fixing the compensation at the rate of Rs.14,00,000/- for the dry land situated at Siddipura Village, and garden and wet land at the rate of Rs.15,00,000/-. The claimant has not produced any order that any other claimants No.1 to 123 as per Ex.P.42 notification have challenged the award. Learned advocate appearing for respondents has relied upon the judgment referred supra in Mariyamma case. In para 10 of the judgment held, Section 28 of KIAD Act, lays down the procedure for acquisition of the land, Section 29 provides for procedure for payment of compensation, Section 29(2) of KIAD Act states where the amount of compensation has been determined by an agreement. In para No.14, it is further held, if the compensation is determined under Section 29(2) of KIAD Act by agreement, question of seeking reference does not arise as no award has been made. If no award is passed, an application under Section 18(1) or under Section 18(3)(b) of Land Acquisition Act are not maintainable. Execution of Ex.P.4 indemnity bond dated: 13.12.2011 subsequent to the passing of Ex.D.3 order dated: 11.02.2012, shows the claimant has agreed for the compensation fixed as per Ex.D.3 order and in furtherance executed Ex.P.4 indemnity bond. For the aforesaid reasons and as per the principles laid down in the aforesaid judgment, present petition seeking reference under Section 18 of the Act is not maintainable. As per the aforesaid



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judgment in Mariyamma case also, petitioner has challenged validity of order in L.A. Mis.31/2006 dated: 21.03.2013, rejected her application under Section 18(3)(b) of Land Acquisition Act. The facts of the case on hand and the facts of the judgment referred are ~~one and the same~~ <sup>similar</sup> and hence point No.1 is answered in the negative and I proceed to pass the following

### ORDER

Petition filed under  
Section 18(3)(b) of Land  
Acquisition Act 1894 is  
dismissed.

No order as to costs.

(Dictated to the stenographer, transcribed by her and then corrected and pronounced by me in the open court this the 12<sup>th</sup> day of July, 2019.)

*N. Bhat K.*  
(Lakshminarayana Bhat K.)  
Pri. Senior Civil Judge & CJM,  
Shivamogga.

### ANNEXURE

#### WITNESSES EXAMINED

#### FOR THE PETITIONER/S:

P.W.1 H.H.Mallikarjunappa 26.11.2016

#### FOR THE RESPONDENT/S:

D.W.1 S.T.Javaregowda 30.03.2019

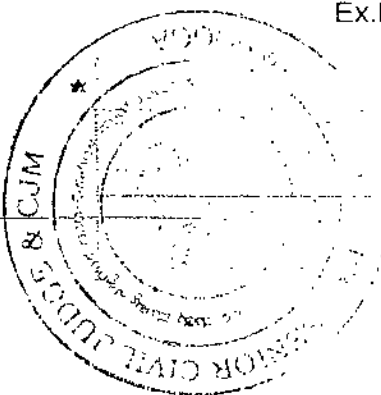
#### DOCUMENTS EXHIBITED

#### FOR THE PETITIONER/S:

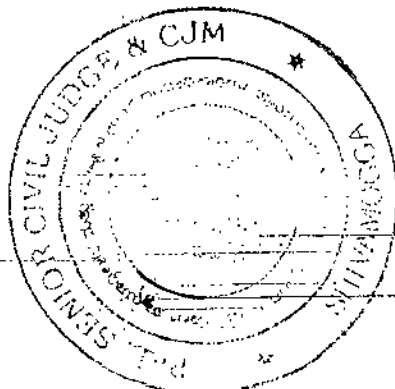
Ex.P.1 C/c of record of rights

Ex.P.2 C/c of Notice dated: 19.08.2009

Ex.P.3 C/c of letter dated: 11.10.2010



- Ex.P.4 C/c of indemnity bond dt. 13.12.2011
- Ex.P.5 C/c of letter dated: 04.10.2013
- Ex.P.6 Notice dated: 06.01.2012
- Ex.P.7 Proceedings of Spl.LAO dt. 21.01.2012
- Ex.P.8 C/c of the judgment in LAC 136/2004
- Ex.P.9 C/c of the explanatory memo in LAC 136/2004
- Ex.P.10 C/c of the letter dated: 14.09.2009
- Ex.P.11 C/c of the letter dated: 18.01.2012
- Ex.P.12 C/c of the letter dated: 11.11.2010
- Ex.P.13 C/c of the letter dated: 14.02.2011
- Ex.P.14 C/c of the submission
- Ex.P.15 C/c of the mahzar
- Ex.P.16 to P.18 C/c of submissions
- Ex.P.19 C/c of the letter of Tahsildar dated: 19.04.2011
- Ex.P.20 C/c of the letter dated: 03.02.2012
- Ex.P.21 C/c of the legal notice dated: 16.01.2012
- Ex.P.22 C/c of postal acknowledgment
- Ex.P.23 C/c of kandayam paid receipt
- Ex.P.24 and P.25 Mahzars
- Ex.P.26 C/c of statement
- Ex.P.27 C/c of submission
- Ex.P.28 Map
- Ex.P.29 C.D.
- Ex.P.30 C/c of Siddlipura Village map
- Ex.P.31 True copy of order in W.P.No.31759/2013
- Ex.P.32 C/c of General Power of Attorney



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Ex.P.33 C/c of grant certificate

Ex.P.34 C/c of the sale deed dated: 23.07.1986

Ex.P.35 C/c of R.T.C.

Ex.P.36 C/c of endorsement

Ex.P.37 C/c of tax paid receipt

Ex.P.38 C/c of agreement dated: 13.12.2011

Ex:P.39     C/c of bank notice dt. 14.12.2011

Ex.P.40      C/c of certificate

Ex.P.41 C/c of KIADB document

Ex.P.42 C/c of Karnataka Gazette

Ex.P.43 Copy of the letter dt. 11.10.2010

Ex.P.44 C/c of the order in W.P.No.7087/2012

Ex.P.45 C/c of the letter dated: 10.05.2012

EX-170 Copy of the Notice dated 01.10.2010

Ex.P.47 and P.48 Record of rights

Ex.P.49 C/c of the order in W.P.No.33900/2014

FOR THE RESPONDENT/S:

Ex.D.1 Office order of Spl. L.A.O. dt. 20.03.2019

Ex.D.2 C/c of Gazzette Notification dated: 23.08.2010

Ex.D. 2 8/19/07 of meeting proceedings of Deputy Commissioner

**New copies for Ex.D.3**

**Duplicating Sheets / Charges required**

**To produce on**

**Duplicating Sheet**

**Applicant**

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Prl. Senior Civil Judge and CJM,  
Shivamogga.



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AnnExill "C"

ದಿನಾಂಕ: 11-11-2010.

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ಹೆಚ್.ಹೆಚ್. ಮಲ್ಲಿಕಾರ್ಜುನಪ್ಪ

ಬಿನ್ ಹೆಚ್.ಪಿ. ಹಾಲಿವುಡ್

ಹಾಲಿ ವಾಸ: 2ನೇ ತಿರುಪು, ಚನ್ನಪ್ಪ ಲೇಔಟ್,  
ಶಿವಮೊಗ್ಗ-577201.

ಇವರಿಗೆ,

ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರಿಗೆ.

ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ, ಶಿವಮೊಗ್ಗ. ಇವರ ಮುಖಾಂತರ

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ

ಮೈಸೂರು.

ವಿಷಯ: ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ ೨೮(೬) ಪ್ರಕಾರ

ಗಾಲೇಖ: ಕ್ರ.ಸಂ.ಎಲ್.ಎಚ್.ಎಸ್.ಆರ್-4-09-10.

食水米油

ಈ ಮೂಲಕ ತಮ್ಮಲ್ಲಿ ಮನವಿ ಮಾಡಿಕೊಳ್ಳುವುದೇನೆಂದರೆ ತಮ್ಮ ನೋಟೀಸಿನಲ್ಲಿ ತಿಳಿಸಿಕೊಟ್ಟಿರುವಂತೆ ಸಹ್ಯಕರತೆ, ತೀವ್ರ ವಿರೋಧವಿಲ್ಲದಿದ್ದರೆ, ತಮ್ಮ ವ್ಯವಹಾರದ 'ಪ್ರಾಕ್ಟೀಸ್'ನಲ್ಲಿ ಕೈಗಾರಿಕಾ ಅಭಿವೃದ್ಧಿಗೆ ಕೊಡುವುದಿಲ್ಲ. ಕಾರಣ ನಾವೇ ಶಿವಮೊಗ್ಗ ತಾಲೂಕು, ಕಸಬಿ ಹೋಬಳಿ, ಸಿಬ್ಬಿಮರ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ.102 ರಲ್ಲಿ ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ 3-16 ಗೆಂಟೆ ವ್ಯವಸಾಯ ಜಮೀನಾಗಿದ್ದು, ಈ ಜಮೀನು ನನ್ನ ಮತ್ತು ನನ್ನ ಮಕ್ಕಳ, ಜೀವನೋಪಾಕೋಪಕರಣ ಇದರಲ್ಲಿ ಬರುವ ಬೆಳೆಯನ್ನೇ ನಾವು ಅವಲಂಬಿಸಿರುವುದರಿಂದ ತಾವುಗಳು ಈ ಜಮೀನನ್ನು ಯಾವುದೇ ಕಾರಣಕ್ಕೂ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಬಾರದಾಗಿ ತಮ್ಮಲ್ಲಿ ಮನವಿ ಮಾಡಿಕೊಳ್ಳುತ್ತೇವೆ. ಮತ್ತು ಈ ಜಮೀನು ನನ್ನ ಸ್ವಂತ ಖಾತೆ ಮತ್ತು ಅನುಭವದಲ್ಲಿಯೂ ಇನ್ನೂ ಇದರಲ್ಲಿ ಯಾವುದೇ ತರಹದ ಹಕ್ಕಾಗಲೀ ಪರಿಭಾರಿಯಾಗಲೀ ಸ್ವಾಧೀನವಾಗಲೀ ಇರುವುದಿಲ್ಲ ಎಂದು ತಿಳಿಯುವುದು.

ಜ್ವರವ್ಯಾಧಿಲಿ ಎಂದೂ ತ್ರಿಲೋಕಮೃದು.

ನನ್ನ ಮಕ್ಕಳು ಇರಬೇಕಾದರೂ ನಾವೇ ಖುದ್ದಾಗಿ ಒಂದು ಸ್ವಂತ ಕೈಗಾರಿಕೆಯನ್ನು ನಡೆಸುವ ಆಶಯ ಇರುವುದರಿಂದ ತಮ್ಮ ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿ ನಡೆಯಿಂದ 10-15% ಉದ್ದೇಶ ಸ್ವೀಕೃತಿ ಕಡ್ಡಾಯವಾಗಿರುವುದರಿಂದ ಈ ಮೂಲಕ ತಮ್ಮಲ್ಲಿ ಮನವಿ ಮಾಡಿಕೊಳ್ಳುತ್ತೇವೆ.

ವಂದನೆಗಳೊಂದಿಗೆ.

13<sup>4</sup>  
13<sup>5</sup>

This document is referred to as  
Annexure.....in the

Annexure.....in the  
of Sd/Smt.  
11/3/14

Oath Commissioner

APR 28 1937

[illegible]

1. The first part of the document is a list of names and titles, including "The Hon. Mr. Justice" and "The Hon. Mr. Justice".

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S R Medina

CR. 674/14  
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ANNEXURE "D"

IN THE COURT OF PRL. SENIOR CIVIL JUDGE &  
M.A.C.T-VI, AT SHIVAMOGGA

Present: Smt.B.K.Komala, B.A.L., LL.M.,  
Prl. Senior Civil Judge &  
MACT-VI, Shimoga.

DATED THIS THE 28<sup>TH</sup> DAY OF MARCH 2014

LAC.No.1/2012

Claimants:

1. H.M. Mallikarjunappa,  
S/o Late H.H.Halappa,  
Aged 65 years,
2. H.M.Prema, Major,  
W/o H.M.Mallikarjunappa,  
  
Both are R/o 2<sup>nd</sup> cross,  
Channappa Layout,  
Shimoga.
3. Mahesha S/o Shivashankar,  
Aged 47 years, Agriculturist,  
R/o Muddinakoppa village,  
Shimoga Taluk.

(C1 & C2 - Rep. By Sri.B.G.Shivamurthy, Adv.  
C3 - By Sri.Basavarajappa M.B., Adv.)

Vs

Respondent: The Spl. Land Acquisition Officer,  
K.I.A.D.B., Bykampadi,  
Mangalore.

(By Sri.K.G.Chandrashekarappa, Adv.)



\*\*\*

Rs.20/- K2-8476/14, Dt: 29/3/14  
Prs 6/- K2-362/14 Dt: 11/4/14

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# J U D G M E N T

This is a reference made by the Special Land Acquisition Officer, K.I.A.D.B., Mangalore, U/o 30 and 31 of the Land Acquisition Act regarding ~~to~~ a dispute <sup>✓</sup> pertaining to payment of compensation with regard to the acquisition of the land bearing Sy.No.102 measuring 3.25 acres, situated at Siddlipura village, Kasaba Hobli, Shimoga Taluk.

2. As per the reference made by the Special Land Acquisition Officer, on receipt of the records, <sup>office</sup> registered <sup>to</sup> a case and issued notices to the parties.

3. The claimant No.1 is the khatedar of Sy.No.102 measuring 3.25 acres of Siddlipura village, Kasaba Hobli, Shimoga Taluk. Claimant No.2 is his wife and claimant No.3 <sup>is one</sup> ~~by name~~ Mahesh, who has opposed for payment of compensation to the claimant No.1.

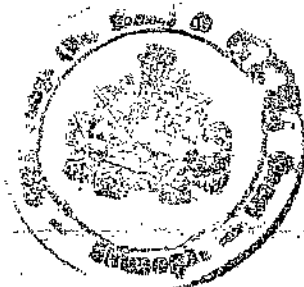
4. The claimant No.3 has filed objections stating that he is in possession of Sy.No.102 measuring 3.25 acres of Siddlipura village, Shimoga Taluk, since 1985



*[Handwritten signature]*

continuously, uninterruptedly and to the knowledge of the khatedar i.e., the claimant No.1. It is contended that during 1987, the claimant No.1 asked him to vacate, but he obstructed and he is in possession of the said property forcibly. Therefore, the claimant No.3 has contended that he has perfected his title and possession over the said property by means of adverse possession and therefore he is entitled for the compensation amount deposited to the above case pertaining to the said property bearing Sy.No.102 of Siddlipura village.

5. The claimant No.1 has examined himself as PW1 in support of his case and got marked 27 documents as Ex.C1 to Ex.C27. Another document has been marked through PW1 as Ex.R1. The claimant No.3 has examined himself as PW2 and got marked 6 documents as Ex.P1 to Ex.P6. Two witnesses are examined as PW3 and PW4 and through them two documents are marked as Ex.R2 and Ex.R3. <sup>Three</sup> ~~Three~~ other witnesses have also been examined as PW5 to



PW7. PW3 to PW7 are the witnesses examined on the side of the claimant No.3.

6. The learned counsel for the 1<sup>st</sup> claimant has filed written arguments. Heard the arguments. Perused the records.

7. From the materials placed before the court, following points arise for my consideration;

1) Whether the claimant No.3 has made out that he has perfected his title over Sy.No.102 measuring 3.25 acres of Siddlipura village by means of adverse possession?

2) Whether the claimant No.3 is entitled for compensation amount?

3) What order or decree?

8. After close scrutiny of the oral and documentary evidence and after hearing the arguments, my findings to the above points are:

Point No.1: In the negative

Point No.2: In the negative

Point No.3: As per the final order for following;



*[Handwritten signature]*

**REASONS**

**9. Point No.1 and 2:** From the entire revenue records and the records submitted by the Land Acquisition Officer, it is seen that the preliminary notification has been issued showing the claimant No.1 as the khatedar. Only in Ex.C11, the claimant No.2 is shown as the possessor of the land in Sy.No.102. Even in the said document, the claimant No.1 is shown as the khatedar. Further, in support of his contention that he is the owner of land bearing Sy.No.102 measuring 3.25 acres of Siddlipura village, claimant No.1 <sup>has</sup> ~~is~~ examined himself as PW1 and he has also produced the original title deeds.

10. Ex.C2 is the grant certificate issued to one Smt.Susheelamma pertaining to the land bearing Sy.No.102. Ex.C1 is the power of attorney executed by the said Susheelamma in favour of one B.H.Narasimha Murthy. Ex.C3 is the original sale deed executed by the said power of attorney holder Narasimha Murthy in favour of claimant No.1. Ex.C4 is the RTC, wherein



29-  
both in column No.9 and 12, the name of claimant No.1 finds place. Ex.C5 is the Encumbrance Certificate. Therefore, from the perusal of Ex.C1 to Ex.C5, it becomes very clear that the claimant No.1 is the owner of the land bearing Sy.No.102 measuring 3.25 acres. It is pertinent to note that in Ex.C4 both in the khatedar column and the possessor column, the name of claimant No.1 has been entered. It is for the year 2010-2011. Ex.C6 is the tax paid receipt, which further corroborates the case of the claimant No.1 that he is in possession of the said property.

11. Ex.C7 and Ex.C8 are the agreement and the indemnity bond executed by the claimant No.1 on 13.12.2011 in favour of the Govt., wherein it is stated that the claimant No.1 herein being the owner of Sy.No.102 measuring 3.16 acres has agreed for acquisition <sup>of</sup> ~~for~~ the same by K.I.A.D.B. and to receive the compensation amount. Ex.C9 is a letter issued by the Indian Overseas Bank pertaining to the loan transaction. Ex.C10 is the certificate issued by the



Tahsildar stating that Sy.No.102 measuring 3.16 acres of Siddlipura village is not subject to any tenancy.

These documents substantiate the contention of the claimant No.1 that he is in possession of the said Sy.No.102 and the respondent had also recognized the claimant No.1 as the khatedar and the possessor of the said property, is entitled for receipt of the compensation amount towards the acquisition of the said land.

12. On the other hand, the claimant No.3 has specifically contending<sup>ed</sup> that he has acquired the title over the said property by means of adverse possession since he is in possession of the same from 1985. Therefore, as per Article 65 of the Limitation Act, the burden is on the claimant No.3 to prove that he is in possession of Sy.No.102 measuring 3.16 acres continuously, openly, peaceably and hostile to the title of claimant No.1. In this regard it is seen that the claimant No.3 has examined himself as PW2. Two independent witnesses as PW3 and PW4.



3-<sup>8</sup>

13. PW<sup>2</sup><sub>4</sub> in his cross examination has deposed that he does not know to whom the property in which he is in possession belongs to. He has further deposed that during 1985, they came in possession of the said property. He has further deposed that he gave the application for change of khata to his name during 2009. He has admitted that he gave the said application when the K.I.A.D.B. authorities informed they are going to release the compensation amount pertaining to the said acquired land. He has further deposed that he has not paid any kadayam to the said property. But he has produced Ex.P6, which is a tax paid receipt dated 20.04.2012. It is important to note that the kadayam has been paid by the claimant No.3 in the name of claimant No.1. Therefore, it becomes very clear that Ex.P16 has been taken only for the purpose of the present case. He has further admitted that he has not produced any piece of document to show that he is in possession of the said property. Further, it is important to note that PW2 has deposed that he does not know the survey numbers of



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the neighbouring lands. He has further admitted that he has not given any application for release of compensation amount in his favour. He has also admitted that the respondent has not given any letter to him regarding the acquisition of land and the payment of compensation amount. He has further admitted that till today he has not <sup>plus</sup> produced any suit claiming that he has perfected his title by way of adverse possession.

14. PW3 is stated to be a resident of Muddinakoppa village and not Siddlipura village. In his cross examination, he has categorically admitted that he does not know to whom Sy.No.102 and 103 belonged to. He has further admitted that he cannot say the boundaries of the said properties. He has further deposed that he cannot say as to how the claimant No.3 acquired the said property. He has admitted that Sy.No.102 has been acquired by the K.I.A.D.B. He has further admitted that the claimant No.2 has received compensation with respect to Sy.No.103. He has



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admitted that one Chandra Naika is the friend of claimant No.3. Therefore from his evidence, it becomes clear that he does not know the boundaries of the property, which is in possession of the claimant No.3. Therefore, it cannot be said that by the oral evidence of PW3, claimant No.3 has proved that he is in possession of Sy.No.102 measuring 3.16 acres which was acquired by the KIADB.

15. PW4 is resident of Siddlipura village. In his cross examination PW4 has also admitted that he cannot say the boundaries of the property. He has further deposed that he has not seen any document showing the name of the claimant No.3 as in possession of the said property. Therefore, the evidence of PW4 also does not help the claimant No.3 to prove that he is in possession of Sy.No.102 continuously from 1985 and has acquired title by way of adverse possession.

16. PW5 to PW7 are the Revenue Officer and the Survey Officers, who have made joint survey before the issue of final notification and who have drawn the



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mahazars. In chief examinations, PW5 to PW7 seems to have deposed in support of claimant No.3. However during cross examination, PW5 has categorically admitted that according to the documents, Sy.No.102 is in the absolute ownership and possession of H.M.Mallikarjunappa, i.e., the claimant No.1. He has further admitted that there was no direction for him to conduct spot inspection. In his further cross examination, he has deposed that the Spl. Land Acquisition Officer has asked him orally to look into the application given by the claimant No.3 as to who is in possession of Sy.No.102 and therefore he has written the name of the claimant No.3 in Ex.C11 as the possessor. He has further deposed that the claimant No.3 is<sup>a</sup> resident of Mandekoppa and not Siddipura village. When it was suggested that at the time of final notification and the award, the name of claimant No.1 was found both in Column No.9 and 12 of RTC, the witness has answered as 'may be true'. He has further deposed that he has not enquired the Village Accountant in this regard. Therefore, the evidence of



35-  
PW5 also does not help the claimant No.3 to prove the ingredients of adverse possession or that he is in continuous possession of Sy.No.102 as contended by him.

17. PW6 in his cross examination has admitted that the villagers had informed him that claimant No.3 is in possession of the said property. He has further deposed that he has not drawn any mahazar to that effect. He has further deposed that he has not recorded the statements of the villagers and he does not even know where the said claimant No.3 is residing. He has admitted that one Chandra Naika, who is admittedly the friend of claimant No.3 has got the other persons to file objections before his department making false claims towards compensation amount.

18. PW7 is the Revenue Inspector. He is a signatory to Ex.C24 to Ex.C27. In his cross examination he has deposed that at the time of mahazar, claimant No.1 was present. But, he has further admitted that he has



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not taken the signature of claimant No.1 to the mahazar.

19. From the evidence of PW5 to PW7 also, it is seen that none of these witnesses have categorically deposed that claimant No.3 is in continuous possession of the land bearing Sy.No.102 from 1985 as contended by the claimant No.3. In fact, PW5 to PW7 have deposed that at the time of joint survey and the mahazar, claimant No.3 was not at all present at the place. The said witnesses have further deposed that they have not drawn the mahazar and not taken the statements of the witnesses to show <sup>that</sup> the claimant No.3 is in possession of Sy.No.102. According to those witnesses, the revenue documents are still in the name of claimant No.1 both as khatedar and possessor. Therefore, the oral evidence of PW3 to PW7 <sup>has</sup> is not helped <sup>to</sup> PW2 to prove that he is in possession of Sy.No.102 or to show that he <sup>has</sup> <sup>is</sup> acquired title by means of adverse possession. <sub>2</sub>



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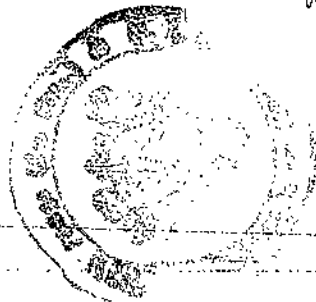
20. Now coming to Ex.C11 to Ex.C27, it is seen that Ex.C11 is the joint survey report wherein in Sl.No. 49, the name of claimant No.1 is shown as khatedar and claimant No.3 <sup>as</sup> is the possessor. Ex.C12 is the Gazette Notification dated 20.08.2010, wherein in the Sl.No. 60, the name of claimant No.1 is shown as khatedar and possessor. Further <sup>in</sup> Ex.C15 to Ex.C22, there is a specific recital that the names of the possessors as found in the Gazette Notification of the year 2009 and the Gazette Notification of the year 2010 are different. It is further stated in those documents, the names of about 50 persons have been falsely entered in the possessor's column to make false claim. In fact, the Senior Assistant Commissioner vide letter dated 12.03.2013 addressed to the Special Land Acquisition Officer has clearly stated that in view of the Enactment of Land Reforms Act, 1961, entering the name of the tenant in the pahanies would not arise. Ex.C24 to Ex.C27 further reveal that the Village Accountant and the Revenue Inspector have drawn mahazar and given report that the names of about 50



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original owner. In this case, PW2 has deposed that he did not know who was the owner of the property at the first instance. He has further deposed that he cannot say the exact date on which he came in possession of Sy.No.102. The other witnesses examined in support of his case, have deposed that they do not know the boundaries of the property in which PW2 is in possession. Therefore, their evidence would not help the PW2 to prove his possession. Therefore, the ingredients of adverse possession has not been proved by the claimant No.3.

22. The learned counsel for the claimant No.3 further argued that even if the claimant No.3 has failed to prove that he has perfected his title by adverse possession, he is entitled for compensation because he being in possession is an injured or affected person. But, as discussed above, the claimant No.3 has also failed to prove that at least he is in possession of the land bearing Sy.No.102 continuously <sup>95 really person in possession from 1985</sup> from 1985, his name would have find place at least in

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37-  
persons have been wrongly included as possessors in the revenue documents and they are false documents. Further, the said documents clearly stated that the names of claimant No.3 has been subsequently inserted inserted as the person in possession, though he is not in possession of Sy.No.102. These documents fortify the contention of the claimant No.1 that the documents have been created just for the purpose of obtaining compensation from the respondent pertaining to Sy.No.102. In fact, PW2 has categorically admitted that he has given application for entering his name in the revenue records only during 2009 when the KIADB authorities informed that they are going to release the compensation amount pertaining to the said land.

21. To prove that a person is in adverse possession of the property, the burden lies on him to prove beyond reasonable doubt that he is in continuous possession of the property for more than 12 years peaceably, openly and hostile to the title of the



Column No.12 of RTC, but not even a piece of document has been produced. Therefore, the claimant No.3 having utterly failed to prove that he is in possession of Sy.No.102 by any stretch of imagination, it cannot be said that he is entitled for compensation amount.

23. The counsel for claimant No.3 has relied upon the following decisions:-

- 1) KCCR 2012 (4) 2878 (Smt.Sumithra -mma Since dead by her LRs. Vs The Spl. LAO, Harangi Project & Anr.).
- 2) KCCR 2004 (1) SN 95 (Durgappa Fakirappa Holer @ Bani & Ors. Vs Bheemappa Basappa Bhajantri & Anr.).
- 3) ILR 2004 KAR 1699 (Durgappa Fakirappa Holer @ Bani & Ors. Vs Bheemappa Basappa Bhajantri & Anr.).
- 4) K.L.J. 2003 (6) 299 (Smt. Narasamma Vs The Karnataka Industrial Area Development Board, Bangalore & Ors.)

From reading those decisions, it becomes clear that the Hon'ble High Court has <sup>decided</sup> ~~dealt~~ with the cases wherein there was relationship of landlord and tenant or



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agreement holder and the executant of the agreement. But, in this case, the claimant No.3 is not claiming either under agreement or under tenancy. Therefore, those decisions are not applicable to the facts of the present case. For the above cited reasons, I answer Point No.1 and 2 in the negative.

**24. Issue No.3:** In the result, I proceed to pass the following

#### ORDER

The reference U/s 30 and 31 of the Land Acquisition Act has been disposed off by <sup>holding</sup> ~~observing~~ that the claim of claimant No.3 for compensation <sup>amount</sup> deposited in the above case is rejected.

Further, Claimant No.1 shall be entitled for the compensation amount of Rs.47,60,000/- deposited in the above case.

*[Signature]*



Advocate's fee is fixed at Rs.1,000/-.

Draw award accordingly.

(Dictated to the Steno, typed by her, corrected by me and then pronounced in the open court this the 28<sup>th</sup> day of March 2014)

*B.K. Komala*  
28/3/14

**(B.K.Komala)**

Prl. Senior Civil Judge & CJM  
Shivamogga.

### ANNEXURE

List of witnesses examined for the claimants:

|     |                   |
|-----|-------------------|
| PW1 | Mallikarjunappa   |
| PW2 | Mahesh            |
| PW3 | M.Rajappa         |
| PW4 | Bheema Naika      |
| PW5 | B.V.Thimma Shetty |
| PW6 | R.Ramachandrappa  |
| PW7 | S.T. Javare Gowda |

List of documents marked for the claimants:

|            |                                        |
|------------|----------------------------------------|
| Ex.P1      | Application to the LAO                 |
| Ex.P2      | Copy of the application dt. 14.09.2009 |
| Ex.P3      | Copy of the notice                     |
| Ex.P4 & P5 | Postal acknowledgments                 |
| Ex.P6      | Tax paid receipt                       |

*B.K. Komala*

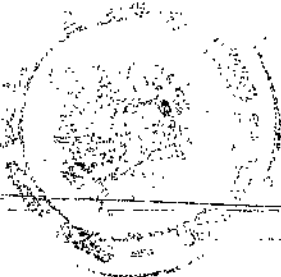


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LAC.1/2012

|              |                                       |
|--------------|---------------------------------------|
| Ex.C1        | GPA                                   |
| Ex.C2        | Grant certificate                     |
| Ex.C3        | Original Sale deed                    |
| Ex.C4        | RTC extract                           |
| Ex.C5        | Encumbrance certificate               |
| Ex.C6        | Tax paid receipt                      |
| Ex.C7        | Agreement                             |
| Ex.C8        | Indemnity bond                        |
| Ex.C9        | Notice issued by Indian Overseas Bank |
| Ex.C10       | Certificate issued by Tahsildar       |
| Ex.C11       | Report issued by KIADB                |
| Ex.C11(a)    | Relevant entry                        |
| Ex.C11(b, c) | Signatures of PW5 and 6               |
| Ex.C12       | Gazette notification                  |
| Ex.C12(a)    | Relevant entry                        |
| Ex.C13       | Letter to D.C.                        |
| Ex.C14       | Application to KAIDB                  |
| Ex.C15       | Letter to DC                          |
| Ex.C16       | Report of Village Accountant          |
| Ex.C17       | Copy of mahazar                       |
| Ex.C18       | Report of Revenue Inspector           |
| Ex.C19       | Report of VA                          |
| Ex.C20       | Report RI                             |
| Ex.C21       | Report of Tahsildar                   |
| Ex.C22       | Letter to LAO by AC                   |
| Ex.C23       | CC of W.P.7087/2012                   |
| Ex.C24       | Mahazar dt. 13.01.2011                |



Ex.C24(a) Signature of PW7  
 Ex.C25 Mahazar dt. 17.01.12  
 Ex.C25(a) Signature of PW7  
 Ex.C26 Mahazar dt. 17.01.12  
 Ex.C26(a) Signature of PW7  
 Ex.C27 Letter dt. 18.01.12  
 Ex.C27(a) Signature  
 Ex.R1 Notice of KIADB  
 Ex.R2 & R3 RTC extracts

List of witness examined for the respondent: **NIL.**

List of documents marked for the respondent: **NIL.**

(B.K.Komala)

Pri. Senior Civil Judge & CJM.,  
 Shivamogga

Ab/



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 be produce on \_\_\_\_\_  
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 3. Applicant requires to be appear  
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 4. Applicant appeared on 11/4/14  
 5. Copy ready on 11/4/14  
 6. Copy delivered on 11/4/14  
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S R Meena  
 Examiner.

S. R. Meena (Sr. Dst) & S. R. Meena  
 Shivamogga

45  
IN THE COURT OF THE PRL. SENIOR CIVIL JUDGE &  
CJM.. SHIMOGA

LAC.NO. 1/2012

Claimant/s:

1. H. M. Mallikarjunappa S/o late H. H. Halappa, 65 years,
2. H. M. Prema W/o H. M. Mallikarjunappa, Major,  
Both are R/o 2<sup>nd</sup> cross, Chennappa layout, Shivamogga City.
3. Mahesh S/o Shivashankar, 47 years, Agriculturist, R/o Muddinakoppa Village, Shimoga taluk.

Vs.

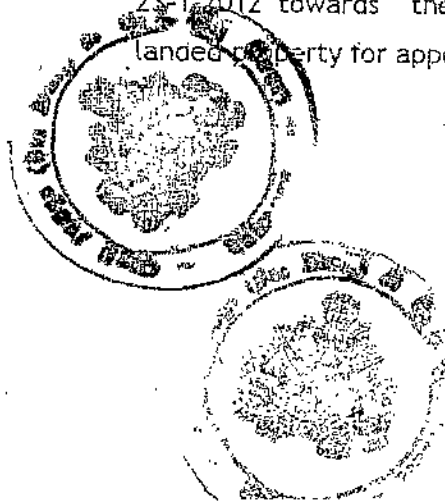
Respondent/s:

1. The Spl. Land Acquisition Officer, K.I.A.D.B. Bycompadi, Mangalore.

EXPLANATORY MEMO

This is a reference received from the Respondent Spl. Land Acquisition Officer, K.I.A.D.B. Bycompadi, Mangalore in respect of the land bearing survey no. 102 of Siddlipura village, Shimoga taluk to an extent of 3.16 acres U/s 30, and 31 of LA Act and registered on 03.02.12 for apportionment of compensation with respect to the parties. Since parties did not settle their claim before the LAO:-

The Spl. LAO, K.I.A.D.B. Bycompadi, Mangalore has sent records along with cheque for Rs.47,60,000/- of Corporation Bank, NR Road Branch, Bangalore-0175 under cheque No.597106 dated: 23-1-2012 towards the award amount in respect of the above landed property for apportionment of compensation amount.



46 2  
This case is coming on this day for final disposal before Smt. B.K. Komala, B.A.L. LL.M. Pri. Senior Civil Judge & CJM, Shimoga in the presence of Sri. B. G. Shivamurthy, Advocate for Claimant No.1 and 2, and By Sri. Basavarajappa M. B. Advocate for Claimant No.3 and District Government Pleader for the Respondent.

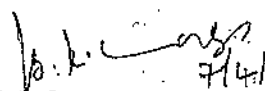
After contest and by pronouncing the judgement, it is ordered and decreed that the reference U/s 30 and 31 of LA Act has been disposed off by holding that the claim of claimant No.3 for compensation amount deposited in the above case is rejected.

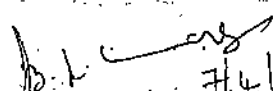
Further it is ordered and decreed that the Claimant No.1 shall be entitled for the compensation amount of Rs.47,60,000/- (Rupees Forty Seven Lakh Sixty thousand only) deposited in the above case.

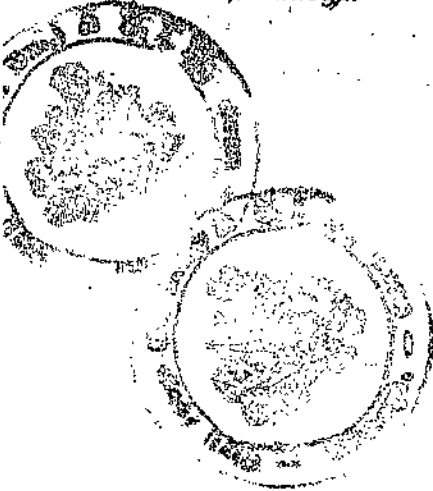
It is further ordered that the advocate fee is fixed at Rs. 1000/- only.

Given under my hand and seal of this court this the 28<sup>th</sup> day of March, 2014.

Explanatory memo signed on

  
Pri. Sr. Civil Judge  
& CJM., Shimoga.

  
Pri. Sr. Civil Judge  
& CJM., Shimoga.



## Memorandum of costs

|                                  | By Claimant<br>No. 1 and 2<br>Rs | By Claimant<br>No. 3<br>Rs | By<br>Respondent |
|----------------------------------|----------------------------------|----------------------------|------------------|
| 1 I.A.                           | -                                | -                          | -                |
| 2 Vakalath                       | -                                | -                          | -                |
| 3 Advocate's fee (for not filed) | -                                | -                          | -                |
| Total:                           | -                                | -                          | -                |



*B. K. ... 29/3/14*  
 P. Sr. Civil Judge and C.M.,  
 Shimoga.



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S. R. ...  
 Examiner.  
 P. Sr. Civil Judge (Sr. Dist. & C.M.)  
 Shimoga

CR-436/14  
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ANNEXURE E

INDIA NON JUDICIAL

Government of Karnataka

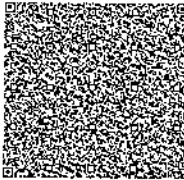
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सत्यमेव जयते

|                           |                                       |
|---------------------------|---------------------------------------|
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| Certificate Issued Date   | : 07-Dec-2011 03:49 PM                |
| Account Reference         | : NONACC (F)/kadopkc07/ SHIMOGA/KA-SM |
| Unique Doc. Reference     | : SUBIN-KAKADOPKC0758001509210217J    |
| Purchased by              | : H H MALLIKARJUNAPPA                 |
| Description of Document   | : Article 12 Bond                     |
| Description               | : AGREEMENT-158                       |
| Consideration Price (Rs.) | : 0                                   |
|                           | : (Zero)                              |
| First Party               | : H H MALLIKARJUNAPPA                 |
| Second Party              | : S L A O KIADB                       |
| Stamp Duty Paid By        | : H H MALLIKARJUNAPPA                 |
| Stamp Duty Amount(Rs.)    | : 100                                 |
|                           | : (One Hundred only)                  |

LAC - 1/12  
SPC - 7  
by  
Pri. Civil Judge (Sr. On.) & C.M.  
Shimoga  
29/8



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ಪ್ರತಿಬಂಧ ನಿಯಮ ಒಪ್ಪಂದವನ್ನೊಳಗೊಂಡ ಕರಾರು ಪತ್ರ

ಸನ್ ಎರಡು ಸಾವಿರದ ಹನ್ನೊಂದನೇ ಇಸವಿಯ ಡಿಸೆಂಬರ್ ಮಾಹೆಯ ದಿನಾಂಕ:13ರಲ್ಲಿ ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ, ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು, ಕಸಬಾ ಹೋಬಳಿ, ಸಿದ್ದಿಪುರ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ:102 ರಲ್ಲಿ 3-16 ಎ.ಗುಂ. ವಿಸ್ತೀರ್ಣದ ಭೂಮಾಲೀಕರು: ಅನುಭವದಾರರು: ವಾರಸುದಾರರು: ಹಕ್ಕುದಾರನಾದ ನಂ.55, 'ಸೂರ್ಯ-ಚಂದ್ರ' 2ನೇ ತಿರುವು, ಚನ್ನಪ್ಪಲೇಜೆಟ್ ಶಿವಮೊಗ್ಗದಲ್ಲಿ ವಾಸವಾಗಿರುವ ಶ್ರೀ ಹೆಚ್.ಹೆಚ್.ಮಲ್ಲಿಕಾರ್ಜುನಪ್ಪ ಬಿನ್ ಹೆಚ್.ಪಿ. ಹಾಲಪ್ಪ, ಆದ ಸಾನು ಕರ್ನಾಟಕ ರಾಜ್ಯ ಸರ್ಕಾರದ, ರಾಜ್ಯಪಾಲರ ಪರವಾಗಿ ಸೂಚಿಸಿರುವಂತೆ ಅಧಿಕಾರಿಗಳೊಂದಿಗೆ ಬರೆದುಕೊಟ್ಟ ಒಪ್ಪಂದದ ಕರಾರು ಪತ್ರದ ಕ್ರಮ ನಿಬಂಧನೆಗಳೇನೆಂದರೆ:-

ಬಿ. ಶ್ರೀ



Rs 201-K2-7944/14, 12/11/3/14

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and 1000 and 200  
in the 1st Page

ಈ ಕೆಳಕಂಡ ನಮ್ಮ ಹಕ್ಕುದಾರರಿಗೆ ಒಳಪಟ್ಟ ತಿವರಣೆಗೆ ಒಪ್ಪಿ, ತಿವರಣೆಗೆ ತಾಲ್ಲೂಕು, ಕಸಬಾ ಹೋಬಳಿ, ಸಿಬ್ಬಿಮರ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ:102 ಕಲ್ಲಿ 3-16 ಎ.ನಂ. ಜಮೀನನ್ನು ಅಂದರೆ ಮೂರ್ತಾ ಇಲ್ಲವೇ ಭಾಗಶಃ ಜಮೀನನ್ನು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿಗೆ ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966 ರಂತೆ ಕೈಗಾರಿಕಾ ಉದ್ದೇಶಕ್ಕಾಗಿ ಭೂಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಂಡಿದ್ದು, ಸದರಿ ಕಾಯ್ದೆಯನ್ವಯ ವಿಧಿ 28(6) ರಂತೆ ಸರ್ಕಾರಕ್ಕೆ ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಂಡಿರುವ ಬಗ್ಗೆ ಭೂಮಾಲೀಕರು ಹಕ್ಕುದಾರರು ಹಾಗೂ ವಾರಸುದಾರರಾದ ನಮಗೆ ನೋಟೀಸು ಕೊರೆಯಾಡಿದ್ದು, ವಿಧಿ 29(2)ರಂತೆ ಸದರಿ ಭೂಮಾಲೀಕನಾದ ನನಗೆ ಪರಿಹಾರಧನ ಸಂದಾಯ ಮಾಡ ಬೇಕಾಗಿರುವುದರಿಂದ ಪರಿಹಾರಧನ ನಿಗದಿ ಮಾಡಿದ್ದು, ಸರ್ಕಾರಕ್ಕೂ ಹಾಗೂ ಭೂಮಾಲೀಕನಾದ ನನಗೂ ಸದರಿ ಒಪ್ಪಂದದ ಕರಾರಿನಂತೆ ಪರಿಹಾರ ಹಣ ಸಂದಾಯ ಮಾಡಬೇಕಾಗಿರುವುದರಿಂದ ಮೇಲ್ಕಂಡ ಜಮೀನಿನ ಖಾತೆದಾರ: ಅನುಭವದಾರನಾಗಿ ಸದರಿ ಪರಿಹಾರ ಧನವನ್ನು ಪಡೆಯಲು ಮನವಿ ಸಲ್ಲಿಸುವುದರ ಮೂಲಕ ಒಪ್ಪಿದ್ದು, ಸದರಿ ಪರಿಹಾರ ಧನವನ್ನು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿಯ ವತಿಯಿಂದ ನಿಗದಿಪಡಿಸಿರುವ ಅಥವಾ ಇನ್ನು ಮುಂದಕ್ಕೆ ಮಂಡಳಿ ಅಥವಾ ಸರ್ಕಾರವು ಭೂ ದರದ ಕುರಿತು ಮಾಡಬಹುದಾದ ಬದಲಾವಣೆಗಳಿಗೆ ಒಳಪಟ್ಟು ಈ ಪರಿಹಾರ ಧನವನ್ನು ಪಡೆಯಲು ಭೂ ಮಾಲೀಕರು ಒಪ್ಪಿರುವಂತೆ ರೂ..... (.....) ಹಣ ಪೂರ್ತಿ ಭೂ ಮಾಲೀಕರಿಗೆ ನಷ್ಟಪೂರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರವನ್ನು ಬರಿಸಿಕೊಡುವುದರ ಮೂಲಕ ಪರಿಹಾರ ಧನವನ್ನು ಪಡೆಯಲು ಒಪ್ಪಿರುತ್ತೇನೆ.

ಭೂಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಂಡ ಜಮೀನಿನ ಭೂ ಮಾಲೀಕತ್ವ ಇರುವುದಿಲ್ಲವೆಂದು ಒಂದು ವೇಳೆ ಸಾಬೀತಾದಲ್ಲಿ ಕೂಡಲೇ ಸದರಿ ಪರಿಹಾರ ಧನ ಸರ್ಕಾರಕ್ಕೆ ಅಥವಾ ಮಂಡಳಿಗೆ ಆಗಿರುವಂತಹ ನಷ್ಟ ಭರಿಸಿಕೊಡಲು ಸದರಿ ಹಣ ಪೂರ್ತಿ ಮರು ಸಂದಾಯ ಮಾಡಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ.

ಈ ಮೇಲ್ಕಂಡ ಕರಾರಿನ ವಿವರಗಳಿಗೆ ನಾನು ಈ ಕೆಳಕಂಡ ಸಾಕ್ಷಿಗಳ ಸಮ್ಮುಖದಲ್ಲಿ ಒಪ್ಪಿ ಸಹಿ ಮಾಡಿರುತ್ತೇನೆ.

1. *Silene acaulis*  
Carnivorous  
Humboldt Glacier  
Svalbard

உணர்வுகள் ந. 5/6 உட்கு  
அலங்கார - நான் உலகமே  
உணர்வுகள் தி.



1. ~~Apply~~ Application for on 11/3/14  
 2. ~~Issuing~~ Sheets/Charges required to  
 be produce on \_\_\_\_\_  
 3. ~~Issuing~~ Sheets/Charges produced

Copy made on 7/21/54  
Typed by [illegible]  
True and exact copy of the Original

S R Meierow

**Examiner:**

50

23489/15  
ANNEXURE F  
Malikarjunappa H.M

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 14<sup>TH</sup> DAY OF JULY 2015

BEFORE

THE HON'BLE MR. JUSTICE RAM MOHAN REDDY

WRIT PETITION No. 33900/2014 (LA-RES)

BETWEEN:

H.H. MALLIKARJUNAPPA  
S/O LATE H P HALAPPA  
AGED ABOUT 63 YEARS  
R/O NO.55, "SURYA CHANDRA"  
OPPOSITE TO ZP OFFICE QUARTERS  
CHANNAPPA LAYOUT  
SHIMOGA - 577 201.

... PETITIONER

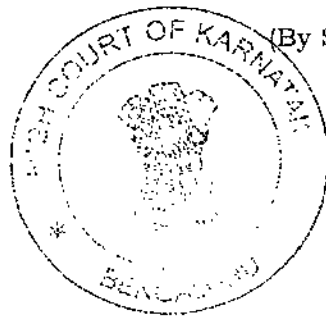
(By Sri. KEMPANNA, ADV.,)

AND

1. STATE OF KARNATAKA  
BY ITS SECRETARY  
DEPARTMENT OF REVENUE  
M.S BUILDING  
BANGALORE-560001.
2. THE DEPUTY COMMISSIONER  
SHIMOGA DISTRICT  
SHIMOGA-577201.
3. THE SPECIAL LAND ACQUISITION OFFICER  
KIADB, BAIKAMPADY  
MANGALORE-571 001.

... RESPONDENTS

(By Sri. Y.D. HARSHA, AGA)



This Petition contains 2 Pages  
And Copying charges of Rs. 100/- is  
Received

- [illegible]

6/7/2019

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P.No. \_\_\_\_\_/2020

F.R.No.12212/2020

Between:

Sanjivini Mahila Vikasa Seva Sangh.

... Petitioner

And:

State of Karnataka & others.

... Respondents

MEMO OF URGENCY/POSTING

The petitioner in the above case herewith submits as follows :

1. Nature: Writ Petition seeking quashing of circular dated 02/07/2020.
2. Prayer: Quashing of the circular dated 02/07/2020.  
*No.DWC/ICD/PRC/04/2016-17 (Part-2) vide Annexure-A.*
3. Synopsis

| Date      | Events                                                                                                                                                                                                                                                                                                                               |
|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1975      | Integrated Child Development Scheme was introduced by the Government of India.                                                                                                                                                                                                                                                       |
| 2001      | A public interest litigation case was filed by the Peoples Union for Civil Liberties before the Hon'ble Apex Court which came to be numbered as W.P No. 196/2001 in which they sought for revamping the implementation of the said scheme as there were certain defects found in the above ICDS scheme.                              |
| 7/10/2004 | The Hon'ble Apex Court in W.P No. 196/2001 passed an interim order in which the Hon'ble Apex Court directed the Governments of various states to encourage women groups, village communities for supplying nutritional products under the ICDS projects and the same had been reiterated under the National Food Security Act, 2013. |

*Submitted*

02

FAX : 080-22867522  
TEL : 080-22862583

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ  
NO.

9188-Saleable

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ  
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ  
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL  
HIGH COURT BUILDING  
BENGALURU-560 001

1. The Deputy Commissioner,  
Tumakuru District,  
TO, Tumakuru - 572 101.

ದಿನಾಂಕ DATED.....

26.07.2021

2. The Special Land Acquisition Officer,  
Hemavathi Canal Zone,  
Kunigal Road, Tumakuru - 572 101.  
ಮಾನ್ಯರ,  
SIR,

**BY FAX/E-MAIL**

**Sub:** Writ Petition No. 10183/2021 (LA) - on the file  
of High Court of Karnataka at Bengaluru -  
Smt. Doddamma by LRs. **vs.** State by its  
Secretary, Revenue Dept. & others.

\*\*\*

In the above Petition, the Petitioner has sought for a  
direction, directing the 3<sup>rd</sup> Respondent- SLAO, Hemavathi Canal  
Zone to pay the compensation as per Annexure-E, Notice dated  
17.08.1995 and for such other reliefs.

The above matter was listed before the Hon'ble Court in  
C.H.No.16 on 26.07.2021. After hearing, the Hon'ble Court was  
pleased to direct to take notice on your behalf and directed the  
matter to be listed next week.

Therefore, you are hereby requested to furnish the  
parawise remarks in English version and relevant records to this  
office immediately, so as to enable the undersigned to prepare  
and file the Statement of Objections and defend the matter  
effectively.

Kindly treat the matter as extremely urgent and do the  
needful.

Yours faithfully,



( A.C. BALRAJ )

ADDL. GOVT. ADVOCATE

RS:2607:2+1\*

FAX : 080-22867522  
TEL : 080-22862583

ಕರ್ನಾಟಕ ಸರ್ಕಾರ  
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ  
NO.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ  
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ  
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL  
HIGH COURT BUILDING  
BENGALURU-560 001

ಗೆ,  
TO,

2048/40/11-22  
The Principal Secretary to Govt.,  
Revenue Department,  
M.S.Building,  
ಮಾನ್ಯರ  
SIR, Bengaluru-560001.

ದಿನಾಂಕ DATED.....

**01.07.2021**

Sub:- **W.P.No.9697/2021** on the file of  
the High Court of Karnataka - Sri  
H.H.Mallikarjunappa .Vs. The State of  
Karnataka by Principal Secretary,  
Department of Revenue and others.

\*\*\*

The Petitioner has filed above Writ Petition praying to  
quash the impugned Order dated 12.07.2020 passed by the Prl.  
Senior Civil Judge and CJM at Shivamogga in  
L.A.Mis.No.66/2015, produced as Annexure-A and for such other  
consequential reliefs.

The above Writ Petition was listed in Court Hall No.22 on  
29.06.2021. The Hon'ble Court has directed the undersigned to  
take Notice on behalf of Respondents No. 1 to 3. Accordingly,  
the undersigned has taken the Notice on behalf of Respondents